In Moor. 45 it is said that, if the King be deceived in his grant, it shall not be allowed to take effect contrary to his intent. [240] Now here the King's intention was to renovate the old corporation; and the allowance of the last charter would be to create a new corporation contrary to his intention. Then it was argued, that if one part of the King's charter be good, and another bad, the latter may be rejected; or if two constructions may be made, by the one of which it may be supported in law, and not by the other, such construction shall be put on the grant as will give effect to it; for which was cited 9 Rep. 131 a. 10 Rep. 67. And the reason given in both instances is, that it is for the honour of the King and the benefit of the subject that it should be so. But in this case it is not for the benefit of the subjects (the old corporators) to be divested of those rights of which they were legally possessed. If the King's grant has a double intent, it shall be void for the uncertainty. Dav. 45. 2 Ro. Abr. 196, F, 1; a fortiori then shall the present grant be void for contradiction. Lord Ch. B. Comyns in his Digest (a)[1] mentions, as a preliminary to all grants, "That every grant by the King of a thing which he may grant, where he is apprised of his interest, and of the cause and circumstances of the grant, will be good." But here the King was not apprised of the circumstances of the grant, as far as respected the granting of a new corporation.

Lord Kenyon, Ch.J.—The general question which arises on this special verdict is, whether the charter of Geo. 3 was accepted? In arguing which some things are clear; when a corporation exists capable of discharging its functions, the Crown cannot obtrude another charter upon them: they may either accept or reject it. In arguing one part of the case, the counsel for the relator took their ground on the convenience of the case, inferring from thence that the law would coincide with it. Now let us consider what is the convenience of the case; and in doing so I do not confine my observations to Helleston alone, but they are applicable to corporations in general, where they have conclusive jurisdictions from the rest of the county. That the magistracy in this borough had ceased, and that the remaining corporators could not exercise those functions which were intended for the government of the borough, are allowed on all hands. Then it cannot be supposed that it must depend on the whim or caprice of three or four individuals, or perhaps one, whether there should be any magistracy in the town or not; especially too in direct opposition to the intentions of the King [241] who, as pater patriæ, is to superintend the administration of justice throughout the country, and who thought it necessary to provide by his charter a sufficient number of magistrates for the government of this place: and as was said by Lord Mansfield (though for another purpose) in the case of *The Mayor, &c. of Colchester* against *Seaber* (a)[2], "Without an express authority, so strong as not to be gotten over, we ought not to determine a case so much against reason." The several inconveniences, which have been pointed out, namely, that the corporation lands would revert to the donor, by which the means of carrying into execution public and charitable trusts would be defeated, and that various privileges would be destroyed, would, if true, have considerable weight. But the great difficulty of the case is solved by this; when an integral part of a corporation is gone, without whose existence the functions of the corporation cannot be exercised, and the corporation has no means of supplying that integral part, the corporation is dissolved to certain purposes. This appears by the case put in Rol. Abr. (b) of the corporation of brothers and sisters: this passage is adopted by Lord Ch. B. Comyns in his Digest (c); another passage equally strong is there added; and though he mentions no authority to support it, yet it must be remembered that his opinion alone is of great authority. But it does not follow that, because the corporation is dissolved to a certain purpose, the King cannot renovate it. Corporations are the creatures of the Crown: and on their dissolution their franchises revert to the Crown. But if the King choose that all their rights shall be revived, it is competent to him to do so, either with the old or new corporators; and thereby no person is injured, nor is any rule of law infringed. And by the new charter the King did not consider the old corporation as dissolved to all purposes; but he granted those rights to a new set of men, and superadded such other powers as he deemed necessary. It has been said that in the case of *The Mayor, &c. of Colchester* v. *Seaber* it was determined that the old corporation was not irrecover-

(a)[1] Com. Dig. 452 (G, 4).
(b) 1 Ro. Abr. 514, L, 1.
(a)[2] 3 Burr. 1870.
(c) 3 Com. Dig. 415.

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